# OPERATING AGREEMENT

This Operating Agreement of BH BWELL I LLC, a Wyoming limited liability company (the "**Company**"), is entered into as of February 10, 2026 (the "**Effective Date**") by and among the Company, OVALIA CAPITAL BITCOIN LLC, a Wyoming limited liability company having an address at 30 N Gould Street, Ste N, Sheridan WY 82801 (the "**Operating Member**"), and _____ (the "**Investor Member**" and, together with the Operating Member, the "**Members**").

## ARTICLE I
## DEFINITIONS

"**Actual Capital**" shall mean, with respect to a Member, the sum of Capital Contributions made by such Member, including Initial Capital, and Additional Capital.

"**Additional Capital**" shall mean additional Capital Contributions made to the Company in accordance with Section 3.02.

"**Affiliate**" shall mean, with respect to a Person, any other Person directly or indirectly controlling, controlled by or under common control with such first Person. As used in this Agreement, the term "**control**" means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policy and/or policies of a Person, whether through ownership of voting securities, by contract or otherwise.

"**Agreement**" shall mean this Company Agreement, dated as of the date hereof, by and between the Operating Member and the Investor Member, as amended or restated from time to time.

"**Applicable Law**" shall mean, collectively, all federal, state, and local laws, statutes, codes, acts, ordinances, orders, judgments, decrees, injunctions, rules, regulations, permits, licenses, authorizations, directions, and requirements of and agreements with all courts and governmental authorities, foreseen and unforeseen, ordinary or extraordinary.

"**Approve**," "**Approved**", **or** "**Approval**", at any time, shall mean the written approval by each of the Members of a proposed decision, action, report, budget, election, or any other matter, including, without limitation, any Major Decision.

"**Bankruptcy Act**" shall mean Title 11 of US Code §§ 101-1532, as amended.

"**Business Day**" shall mean any day other than Saturday, Sunday or any legal holiday observed in the state of formation of the Company or the location of the Property.

"**Capital Contributions**" shall mean the cash or property contributed to the Company by a Member pursuant to Code Section 721.

"**Cash Available for Distribution**" means Cash Flow less amounts set aside for restoration or creation of reserves determined by the Operating Member, in its sole and absolute discretion, to be necessary and desirable, including but not limited to reserves for debt service for a reasonable period of time, taxes, insurance, increases in working capital and contingencies.

"**Capital Transaction**" shall mean any of the following: (a) a sale, exchange, transfer, assignment, or other disposition of all or a portion of the Company's direct or indirect interest in the Property; (b) any financing of any asset of the Company, its direct or indirect interest in the Property; (c) any collection by the Company in respect of condemnation or deed in lieu of condemnation or in respect of property, hazard or casualty insurance, or any damage reward, relating to the Property (other than business interruption insurance); or (d) any other transaction of the Company the proceeds of which arise from a capital transaction or the proceeds of which, in accordance with generally accepted accounting principles, are considered to be capital in nature.

"**Cash Flow**" shall mean cash funds provided from operations of the Company, without deduction for depreciation or amortization expenses, but after deducting funds used to pay all other expenses, debt payments, capital improvements and replacements.

"**Cash From Refinancing**" means the gross proceeds received by the Company upon the refinancing of the Company assets (less all costs of such refinancing, including the payment of all obligations refinanced in connection therewith), less amounts set aside for restoration or creation of reserves determined by the Operating Member, in its sole and absolute discretion, to be necessary and desirable, including but not limited to, reserves for debt service for a reasonable period of time, taxes, insurance, increases in working capital and contingencies. This term shall not include Cash Flow.

"**Cash From Sale or Other Disposition**" means the net proceeds received by the Company upon the sale or other disposition of less than all or substantially all of the Company assets, less amounts set aside for restoration or creation of reserves determined by the Operating Member, in its sole and absolute discretion, to be necessary and desirable, including but not limited to, reserves for debt service for a reasonable period of time, taxes, insurance, increases in working capital and contingencies. This term shall not include Cash Flow.

"**Certificate**" shall mean the Certificate of Formation of the Company dated January 30, 2026.

"**Code**" shall mean the Internal Revenue Code of 1986, as amended (or any corresponding provision or provisions of any succeeding law).

"**Company Assets**" shall mean the Property and all other assets, property, rights, interests, and funds held by the Company from time to time, including (but not limited to) any direct or indirect assets and property, whether tangible or intangible (including monies) and whether real, personal, or mixed, from time to time owned by or held for the benefit of the Company, including the interest in the Property.

"**Effective Date**" shall have the meaning set forth in the Preamble to this Agreement.

"**Event of Dissolution**" shall have the meaning set forth in Section 10.01.

"**Fair Market Value**" shall mean that term as defined in Regulations Section 1.704-1(b)(2)(iv)(h).

"**Fiscal Year**" shall mean the calendar year or the date on which all Company assets are distributed pursuant to Section 5.01 and the Certificate has been cancelled pursuant to the Wyoming Act.

"**Indemnified Party**" shall have the meaning set forth in Section 9.01.

"**Initial Capital**" shall have the meaning set forth in Section 3.01.

"**Interest**" shall mean, as to each Member, its ownership interest in the Company and includes any and all benefits to which the holder of such an Interest may be entitled, including the right to receive distributions of funds, and to receive allocations of income, gain, loss, deduction, and credit.

"**Investor Member**" shall have the meaning set forth in the Preamble.

"**Major Decision**" shall have the meaning set forth in Section 6.02.

"**Member**" shall have the meaning set forth in the Preamble.

"**Net Income**," "**Net Loss**," and "**Gain**" mean, respectively, the following amounts as designated on the Company's informational tax return filed for federal income tax purposes, as determined by the tax attorney(s) or accountant(s) employed by the Company: (i) ordinary income, (ii) ordinary loss, plus net long-term capital loss, net short-term capital loss, and Section 1231 loss; and (iii) net long-term capital gain, net short-term capital gain, and other net gain under Section 1231. In the event that property is reflected on the books of the Company (as maintained in accordance with Regulations Section 1.704-1(b)(2)(iv)) at a book value that differs from the adjusted tax basis of such property, Net Income, Gain and Net Loss (or item thereof) shall be determined by reference to the book value of such property. Such allocation of book values shall be made in accordance with Regulations Section 1.704-1(b)(2)(iv)(g).

"**Operating Member**" shall have the meaning set forth in the Preamble.

"**Percentage Interests**" shall mean, as of the date hereof, 15% for Operating Member and 85% for Investor Member.

"**Permitted Transfer**" shall have the meaning set forth in Section 8.01(c).

"**Person**" shall mean an individual, corporation, firm, partnership, limited liability company, trust, or any other form of association or entity.

"**Property**" shall mean BH BWELL I LLC and any company assets.

"**Regulations**" means U.S. Treasury Regulations.

"**Transfer**" shall have the meaning set forth in Section 8.01(a)(i).

"**Unreturned Capital Contribution**" means, with respect to any Member, the excess, if any, of the aggregate amount of all Capital Contributions contributed by such Member to the Company, over the aggregate amount of distributions made to such Member pursuant to Sections 5.01, 5.02. and 5.03 of this Agreement.

"**Wyoming Act**" shall mean the Wyoming Company Act.

## ARTICLE II
## ORGANIZATION

**Section 2.01 Formation.** The Company was formed on January 2026, pursuant to the provisions of the Wyoming Act, upon the filing of the Certificate with the Secretary of State of the State of Wyoming. The rights, powers, duties, obligations, and liabilities of the Members shall be determined pursuant to the Wyoming Act and this Agreement. To the extent that the rights, powers, duties, obligations, and liabilities of any Member are different because of any provision of this Agreement than they would be under the Wyoming Act in the absence of such provision, this Agreement shall, to the extent permitted by the Wyoming Act, control.

**Section 2.02 Name.** The name of the Company is " BH BWELL I LLC" or such other name or names as may be Approved by the Members.

**Section 2.03 Purpose and Powers.** The purpose of the Company is to engage in investment activities, including but not limited to investing in Bitcoin, digital assets, digital-asset-related vehicles, pooled investment funds, special purpose vehicles, derivatives and other investment opportunities, directly or indirectly, as determined by the Operating Member in its sole discretion, and to engage in all activities incidental or ancillary thereto. The Company may invest directly or indirectly through one or more pooled investment vehicles, special purpose entities, or third-party investment funds, including funds managed by Affiliates of the Operating Member, and may incur management fees, performance fees, carried interest, or other expenses at such underlying investment level. Digital assets shall be valued using prices obtained from one or more reputable exchanges, custodians, or pricing services selected by the Operating Member in its sole discretion."

**Section 2.04 Principal Place of Business.** The principal place of business of the Company shall be at 30 N Gould Street Ste N Sheridan Wyoming 82801. The Company may locate its principal place of business at any other place or places, within or outside the State of Wyoming as shall be designated, from time to time, by the Operating Member.

**Section 2.05 Registered Office; Registered Agent.** For purposes of the Wyoming Act, the registered office and statutory agent for service of process for the Company in the State of Wyoming shall be: North Western Registered Agent. The Operating Member may change the registered office or agent for service of process for the Company, from time to time, as permitted under the Wyoming Act.

**Section 2.06 Term.** The term of the Company shall commence on the date of the filing of the Certificate with the Secretary of State of Wyoming and shall continue until the Company is dissolved in accordance with this Agreement or by law.

## ARTICLE III
## CAPITAL CONTRIBUTIONS AND CAPITAL ACCOUNTS

**Section 3.01 Initial Capital Contributions.**

As of the date hereof, the Members have made such initial Capital Contributions to the Company in the amounts set forth hereto (collectively, the "**Initial Capital**").

**Section 3.02 Additional Capital Contributions.** No Member shall be required to make any additional capital contribution to the Company. Additional capital contributions may be accepted by the Operating Member in its sole discretion from existing or new Members pursuant to such terms and conditions as the Operating Member may determine. The Operating Member shall have no obligation to accept any additional capital contributions and may suspend or limit the acceptance of capital at any time. No Member shall have any right to participate in future capital contributions except as determined by the Operating Member.

**Section 3.03 Capital Accounts.** The Company shall establish and maintain for each Member a separate capital account reflecting the Capital Contributions made by such Member, the profits and losses allocated to such Member, and the distributions made to such Member.

**Section 3.04 No Withdrawal of Capital Contributions.** Except upon dissolution and liquidation of the Company or as otherwise set forth in this Agreement, no Member shall have the right to withdraw, reduce or demand the return of its Capital Contributions, or any part thereof, or any distribution thereon. Except as otherwise provided in this Agreement, no Member shall have the right to receive assets other than cash in connection with a distribution or return of capital.

**Section 3.05 Return of Capital Contributions.**

(a) **No Fixed Time.** Except as specifically provided for in this Agreement and upon dissolution and liquidation of the Company, there is no agreement, nor time set, for the return of any Capital Contribution to any Member.

(b) **No Personal Liability of Members.** Except as otherwise required by the Wyoming Act, the Members shall not be personally liable for the return or repayment of any Capital Contribution.

**Section 3.06 No Priority.** Except as otherwise expressly provided for in this Agreement, no Member shall have priority over another Member as to return of Capital Contributions, loans, or allocations of income, gain, profits, losses, credits, or deductions or as to distributions.

**Section 3.07 No Interest.** Except as expressly provided for in this Agreement, no interest shall be paid on all or any part of a Member's Capital Contributions.

**Section 3.08 No Obligation to Restore Negative Balances in Capital Accounts.** No Member shall have an obligation, at any time during the term of the Company or upon its liquidation, to pay to the Company or any other Member or third party an amount equal to the negative balance in such Member's capital account.

**Section 3.09 Optional Adjustments to Capital Accounts.** Upon (i) a contribution of cash or property (which shall be valued at its Fair Market Value) to the Company by a new or existing Member for member's Interest, or (ii) a distribution by the Company to a retiring or continuing Member for member's Interest, the Company may, in the discretion of the Operating Member, increase or decrease the capital accounts of the Members to reflect a revaluation of Company property on the books of the Company, in accordance with the provisions of Regulations Section 1.704-1(b)(2)(iv)(f).

(a) The Operating Member shall determine the value of the Company's assets and the net asset value ("NAV") of the Company at least semi-annually. In addition, the Operating Member may determine the value of the Company's assets and calculate NAV at any other time and as frequently as it deems necessary or appropriate in its sole discretion, including in connection with capital contributions, redemptions, fee calculations, performance allocations, or other Company matters.

(b) The Operating Member shall have full authority and discretion to determine the methodology used for valuing any asset of the Company, including Bitcoin, digital assets, exchange-traded funds, derivative instruments, pooled investment vehicles, and any other securities or financial instruments. In making such determinations, the Operating Member may rely upon market quotations from exchanges, pricing services, broker-dealers, custodians, counterparties, or other sources it deems reliable, and may apply fair value principles where market quotations are unavailable, unreliable, or deemed inappropriate.

(c) The Managing Member may engage broker-dealers, prime brokers, futures commission merchants, cryptocurrency exchanges, custodians, placement agents, and other intermediaries in connection with the Company's investment activities or capital raising efforts, and may cause the Company to pay customary commissions, spreads, markups, markdowns, financing charges, referral fees, and other compensation associated with such services.

(d) All valuation determinations made by the Operating Member in good faith shall be final, conclusive, and binding upon the Company and the Members. The Operating Member shall not be liable for any difference between estimated valuations and realized proceeds upon disposition of any asset.

(e) All management fees, performance allocations, reimbursements, and Company expenses shall be payable from Company assets and shall have priority over any distributions to Members. The Operating Member may cause the Company to

advance, reserve for, or directly pay all fees and expenses, including but not limited to legal, accounting, audit, administration, custody, exchange, brokerage, financing, data services, regulatory compliance, insurance, due diligence, and operational expenses. Any accrued but unpaid fees shall remain obligations of the Company and shall be payable prior to any Member distributions. Fees properly calculated and paid shall not be subject to clawback solely due to subsequent declines in net asset value. Performance allocations properly crystallized shall not be subject to reversal, clawback, or recharacterization due to subsequent declines in net asset value.

(f) The Company may declare and pay dividends or make other distributions to shareholders at such times and in such amounts as determined by the Operating Member in its sole discretion, subject to applicable law and available funds. No shareholder shall have the right to demand or compel distributions.

(g) The Company is authorized to actively trade, purchase, sell, hold, hedge, and otherwise transact in Bitcoin, Bitcoin-related exchange-traded products, futures, options, swaps, and other derivative instruments or digital asset–related securities as determined by the Managing Member in its sole discretion. The Managing Member may engage in active portfolio management and rebalancing strategies that may result in the realization of short-term or long-term capital gains or losses.

(h) The Managing Member may, but shall not be obligated to, cause the Company to sell portfolio assets to generate liquidity for Company expenses, management fees, performance allocations, or tax distributions. Any such sales and resulting gains shall be reflected in the Company's taxable income and allocated to Members accordingly, and each Member's tax basis in their Membership Interest shall be adjusted as required under applicable tax law.

## ARTICLE IV
## ALLOCATIONS OF PROFITS AND LOSSES

**Section 4.01 Allocation of Net Income and Net Loss.** Allocations of Net Income, Net Loss and Gain of the Company shall be governed by Exhibit A.

**Section 4.02 Tax Elections.** Tax elections of the Company shall be governed by Exhibit A.

## ARTICLE V
## DISTRIBUTIONS

**Section 5.01 Distributions of Cash Available for Distribution.** Subject to Section 5.07, Cash Available for Distribution, when distributed from time-to-time, shall be distributed to the Members, in accordance with the following:

(a) The Operating Member charges a management fee of 2% per annum of total Assets Under Management. The management fee is calculated annually on December 31st. The management fee is charged when the value of the BH BWELL I LLC value of assets exceeds the aggregate capital basis by at least 2%. If the total value of assets does not exceed the aggregate capital basis by at least 2% in a given year, then the management fee of 2% for that year shall be accrued but not charged. Any accrued but unpaid management fee shall carry forward and become payable in the future year. Accrued management fees shall be paid prior to the charging of any current-year management fees.

(b) The Operating Member charges a profit split of: Eighty percent (80%) to the Investor Member, and twenty percent (20%) to the Operating Member. The Operating Member shall be entitled to a performance allocation equal to twenty percent (20%) of the increase in the Company's Net Asset Value ("NAV") above the highest NAV previously achieved as of any prior fiscal year-end (the "High-Water Mark"). The High-Water Mark shall apply on a global basis to the Company as a whole and shall not be calculated separately for any individual shareholder. No performance allocation shall be payable unless and until the Company's NAV exceeds the then-existing High-Water Mark. Upon payment of a performance allocation, the High-Water Mark shall be reset to the new NAV level after deduction of such allocation.

(c) There is a minimum hold period of three (3) years, measure from the date that capital from the Investor Member is accepted by the Company. The hold period is intended to align investor capital with long-term investment strategy of the Company and to protect all investors from forced liquidations during periods of market volatility. During the hold period, Investor Members cannot redeem, withdraw, or otherwise transfer their interest, except as expressly permitted by the Managing Member in its sole discretion.

**Section 5.02 Distributions of Cash from Refinancing, Sale or Other Disposition**. Subject to Section 5.07, Cash From Refinancing and Cash From Sale or Other Disposition, when distributed from time to time, shall, after payment of any debts of the Company then due and the establishment of reasonable and necessary reserves, as determined by the Operating Member in good faith, be distributed to the Members, in accordance with the following:

(a) The Operating Member charges a management fee of 2% per annum of total Assets Under Management. The management fee is calculated annually on December 31st. The management fee is charged when the value of the BH BWELL I LLC value of assets exceeds the aggregate capital basis by at least 2%. If the total value of assets does not exceed the aggregate capital basis by at least 2% in a given year, then the management fee of 2% for that year shall be accrued but not charged. Any accrued but unpaid management fee shall carry forward and become payable in the future year. Accrued management fees shall be paid prior to the charging of any current-year management fees.

(b) The Operating Member charges a profit split of: Eighty percent (80%) to the Investor Member, and twenty percent (20%) to the Operating Member. The profit split is subject to a high-water mark, such that no profit split fee is charged unless the Company's net asset value exceeds its previous highest net asset value after fees. The profit split fees are crystallized annually. The high-water mark is adjusted only after the deduction of all applicable fees.

**Section 5.03 Liquidation and Redemption.**

(a) Following the expiration of the applicable three-year hold period, withdrawal or redemption requests can be submitted and will be redeemed during the next redemption date. The redemption is completed either quarterly or semiannually, subject to market conditions and at the discretion of the Operating Member.

(b) Requests may be considered subject to:

(i) Available liquidity

(ii) Market conditions

(iii) The Company's investment strategy

(iv) Any applicable notice requirements

(c) The Company reserves the right to suspend, limit, or delay withdrawal to protect the interests of the Company and the Investor Members. No redemption if the value of assets is below the capital basis.

(d) Any redemption, withdrawal, or distribution payable to the Investor Member shall be calculated and paid after the deduction of all accrued and unpaid management fees, profit splits, and expenses of the Operating Member. All redemption amounts shall be paid on a net-of-fees basis.

(e) Redemption requests may be satisfied in cash, in kind, or partially in each, as determined by the Operating Member.

(f) The Operating Member may suspend the acceptance of new capital contributions at any time in its sole discretion.

**Section 5.04 Distribution Upon Termination of the Company.** Upon the final termination of the Company, the Operating Member shall take account of all of the Company's assets and liabilities. The assets may be liquidated as promptly as is consistent with obtaining a

reasonable value therefor, and the proceeds therefrom together with assets distributed in kind, to the extent thereof, shall be applied and distributed in the following order:

(a) To the payment of debts and liabilities of the Company which are then due (other than any loans or advances that may have been made by any of the Members to the Company) and the expenses of liquidation.

(b) To the setting up of any reserves which the Operating Member may deem reasonably necessary for any contingent or unforeseen liabilities or obligations or debts or liabilities not yet payable by the Company which have arisen out of or in connection with the Company. Such reserves may be held for disbursement by the Operating Member or delivered to an independent escrow holder, designated by the Operating Member, to be held by such escrow holder for the purpose of disbursing such reserves in payment of any of the aforementioned contingencies, debts or liabilities, and, at the expiration of such period as the Operating Member shall deem advisable, to distribute the balance thereafter remaining in the manner hereinafter provided.

(c) To the repayment of any unpaid loans or advances which are then due and which have been made by any of the Members to the Company, including any accrued but unpaid interest thereon, in proportion to the loan amounts, up to the full amounts thereof, and then any other loans or advances, including any accrued but unpaid interest thereon, in proportion to the loan amounts, up to the full amounts thereof.

(d) Thereafter, in accordance with Section 5.02. The distribution described in this Section 5.03(d) shall occur by the end of the taxable year of Company dissolution, or, if later, within ninety (90) days after the date of such dissolution.

**Section 5.05 Valuation and Distribution of Non-Cash Distributions**. To the extent that non-cash assets shall be distributed in kind pursuant to this Section 5.04, the Fair Market Value of such assets shall first be determined, pursuant to Section 5.08, and the distribution of such assets shall be made in accordance with such valuation after first allocating to the capital accounts of the Members the amount of Gain or Net Loss which would have been allocated to said capital accounts if the non-cash asset had been sold at such Fair Market Value rather than distributed in kind. Any non-cash assets (including, but not limited to, promissory notes) received by the Company in connection with a sale or other disposition may be distributed in kind to the Members or to a collection account with the proceeds to be distributed in accordance with the terms of this Section 5.04 as received. Any such distribution of non-cash assets shall be at the discretion of the Operating Member. The Operating Member in its absolute discretion may determine the relative proportions of cash and non-cash assets distributed to each Member. Any non-cash assets distributed shall be subject to any then-existing agreements or restrictions relating thereto.

**Section 5.06 Discretion in Making Distributions.** The Company shall distribute, subject to the discretion of the Operating Member, cash and/or assets in kind from time-to-time, without regard to whether or not funds represent income for the purpose of determining tax liability, or net profit for the purpose of Company accounting. Such distributions shall be made in the discretion of the Operating Member in accordance with good and sound business practices.

**Section 5.07 Limitation on Other Distributions.** No Member shall be entitled to receive distributions other than as specifically provided by this Agreement.

**Section 5.08 Tax Distribution.** Notwithstanding any other provision of this Agreement, the Operating Member, in its sole discretion, may cause the Company to make distributions of cash to each Member on or before April 15 of any year of amounts which are not less than the result obtained by multiplying the Tax Rate (as hereinafter defined) by the estimated taxable Net Income and Gain of the Company allocable to such Member under Exhibit A for the previous year. The "Tax Rate" shall be thirty-five percent (35%). Any amounts distributed under this Section 5.07 shall be taken into account in computing subsequent distributions under Section 5.01 or Section 5.02, so that the total amount distributed under Section 5.01, Section 5.02 and this Section 5.07 shall be the amount which would have been distributed under Section 5.01 and Section 5.02 if the special distribution under this Section 5.07 had not occurred.

(a) The Company is authorized to actively trade, purchase, sell, hold, hedge, and otherwise transact in Bitcoin, Bitcoin-related exchange-traded products, futures, options, swaps, and other derivative instruments or digital asset–related securities as determined by the Managing Member in its sole discretion. The Managing Member may engage in active portfolio management and rebalancing strategies that may result in the realization of short-term or long-term capital gains or losses.

(b) The Managing Member may, but shall not be obligated to, cause the Company to sell portfolio assets to generate liquidity for Company expenses, management fees, performance allocations, or tax distributions. Any such sales and resulting gains shall be reflected in the Company's taxable income and allocated to Members accordingly, and each Member's tax basis in their Membership Interest shall be adjusted as required under applicable tax law.

**Section 5.09 Valuation of Non-Cash Assets**. For purposes of this Agreement, the procedure for valuing any non-cash assets shall, unless otherwise provided herein, be as follows:

**(a) Assets Other Than Marketable Securities**. If the Members cannot otherwise agree on the value of an asset, the Operating Member shall select a qualified appraiser who has customarily been engaged in appraising assets similar to the asset in question for a period of not less than five (5) years. Such valuation shall include a ten percent (10%) discount for costs of sale. The valuation of the appraiser so selected shall be binding on all Members.

**(b) Marketable Securities**. Any securities held by the Company which are traded on an established market shall be valued according to the market price.

## ARTICLE VI
## MANAGEMENT

**Section 6.01 Management of the Company.**

(a) Operating Member Management Responsibilities.

(i) Responsibilities of Operating Member. Subject to Section 6.01(a)(iii) and the other terms and conditions of this Agreement, the Operating Member shall have exclusive responsibility and authority for the day-to-day management and operation of the business and affairs of the Company. The Operating Member accepts and agrees to perform its duties and undertake its responsibilities set forth in this Agreement, to act in good faith and in the best interests of the Company, and to exercise all commercially reasonable efforts to cause the business of the Company to be operated and managed in a manner consistent with the management and operation of business enterprises comparable to the Company. Except as expressly set forth herein to the contrary, the Operating Member shall: (A) act as the Company's representative with respect to all aspects of the acquisition, development, ownership, and management of the Property and other assets of the Company; (B) use all commercially reasonable efforts to comply with and perform all obligations of the Company; (C) execute and implement all Major Decisions that have been Approved with respect to the Property and the Company and the activities contemplated in; and (D) act as the Company's representative in connection with any proposed sale or financing transaction, providing required financial information or other documentation, dealing with brokers and potential sources of financing or purchasers and performing such additional duties as the Investor Member may reasonably request.

(ii) Specific Responsibilities of Operating Member. In addition to the general responsibilities of the Operating Member set forth in Section 6.01(a)(i), the Operating Member shall also use all commercially reasonable efforts to provide or cause to be provided the following services:

(A) The Operating Member shall have full power, authority, and discretion to manage and control the business and affairs of the Company. The Company's business consists of investing in, purchasing, holding, selling, trading, hedging, and otherwise transacting in Bitcoin, Bitcoin exchange-traded funds (ETFs), leveraged Bitcoin products, Bitcoin futures, options, swaps, forwards, structured products, and other derivative instruments or digital-asset-related securities, as well as cash, cash equivalents, and other investment vehicles deemed appropriate by the Operating Member. The Operating Member is authorized to implement and administer the Company's investment strategy, including determining the timing, size, and structure of portfolio allocations, adjusting exposure among Bitcoin, ETFs, and derivative instruments, increasing or decreasing leverage, entering into hedging transactions, managing collateral and margin requirements, and closing, modifying, or rolling positions as it determines in its sole discretion and in accordance with the Company's investment objectives.

(B) The Operating Member may implement any investment, trading, hedging, or risk management strategy it deems appropriate, including strategies involving margin, derivatives, short-term or long-term trading, concentrated positions, or the use of leverage, and may modify or

deviate from any previously described strategy without notice if it determines that such action is in the best interests of the Company.

(C) The Operating Member is further authorized to open, maintain, and close accounts with broker-dealers, cryptocurrency exchanges, futures commission merchants, prime brokers, custodians, banks, and other financial institutions, and to negotiate, execute, and administer all trading agreements, custody agreements, margin agreements, ISDA agreements, and other documentation necessary or appropriate for the conduct of the Company's investment activities. The Operating Member may select and engage service providers, including administrators, accountants, auditors, legal counsel, consultants, and other professionals, and may coordinate and supervise their activities as necessary for the operation of the Company.

(D) The Operating Member shall have full authority to determine the valuation of Company assets, calculate net asset value, allocate income, gain, loss, deduction, and credit among Members, establish reserves, and determine all accounting and tax matters affecting the Company. All determinations made by the Operating Member in good faith shall be final and binding upon the Members.

(E) The Operating Member shall establish and maintain appropriate accounting systems, internal controls, and financial reporting procedures consistent with generally accepted accounting principles or other applicable standards. The Operating Member shall determine the Company's net asset value, allocate gains and losses among Members, maintain capital accounts, and prepare and deliver such financial statements, tax documentation (including Schedule K-1, if applicable), and other reports as required by law or deemed appropriate. The Operating Member shall also have authority to structure transactions and portfolio positions in a tax-efficient manner, including managing realized and unrealized gains, harvesting losses when appropriate, and investing directly or indirectly through pooled investment vehicles, special purpose entities, or other underlying funds consistent with the Company's objectives. Establish and maintain a sound financial accounting system, and internal fiscal controls through commonly accepted budgeting and accounting procedures and timely financial reporting for the Company.

(iii) The Operating Member shall implement reasonable risk management and compliance procedures, monitor portfolio exposures, manage leverage levels, and take such actions as it determines necessary or advisable to comply with applicable laws and regulations. The Operating Member may make operational adjustments as required by regulatory, custodial, or market conditions, provided such actions are consistent with the Company's stated investment purpose.

(b) Limitation on Authority of Operating Member for Major Decisions. Notwithstanding any provision herein to the contrary, the Operating Member shall have full, exclusive, and sole authority to make all Major Decisions on behalf of the Company without the approval or consent of any Investor. The Investor acknowledges and agrees that no Investor shall have voting, consent, veto, or approval rights with respect to the management, investment strategy, operations, borrowing, leverage, valuation, accounting determinations, fee calculations, entry into derivatives, hedging transactions, restructuring, or other activities conducted by the Company in the ordinary course of its business.

(i) Compensation of Operating Member. Except as otherwise expressly set forth herein, the Operating Member shall not be entitled to any compensation or reimbursement for its services hereunder, provided, however, the Company shall reimburse the Operating Member for all ordinary, necessary, and direct expenses incurred by the Operating Member on behalf of the Company in carrying out the Company's business activities. All reimbursements for expenses shall be reasonable in amount.

(c) **Limitation of Liability.**

(i) Liability Limited; No Fiduciary Duty. The Operating Member shall not be liable to the Company or any Member for any act or omission performed or omitted pursuant to the authority granted by this Agreement; provided that such limitation of liability shall not apply to the extent the act or omission was attributable to the fraud, gross negligence, or willful misconduct or knowing violation of law of the Operating Member. This Agreement is not intended to, and does not, create or impose any fiduciary duty on any Member. Furthermore, each of the Members and the Company hereby waives any and all fiduciary duties that, absent such waiver, may be implied by Applicable Law, and in doing so, acknowledges and agrees that the duties and obligation of the Operating Member and each Member to each other and to the Company are only as expressly set forth in this Agreement. The provisions of this Agreement, to the extent that they restrict the duties and liabilities of the Operating Member otherwise existing at law or in equity, are agreed by the Members to replace such other duties and liabilities of such Person.

**Section 6.02 Major Decisions.**

(a) The Operating Member may modify, suspend, expand, or change the investment strategy at any time without Member consent.

(b) The Operating Member may suspend NAV calculations and redemptions during periods of market disruption, exchange outages, regulatory uncertainty, or liquidity constraints.

(c) Members acknowledge that digital asset valuations may differ materially from realized liquidation values and waive any claims based on valuation differences.

(d) No Member shall have approval rights over investment decisions, portfolio management, leverage usage, entry into derivatives, borrowing arrangements, or other activities conducted in the ordinary course of the Company's investment business.

**Section 6.03 Deadlock.** If the Members are unable to reach agreement on a Major Decision following good faith efforts by the Members to resolve such disagreement for a period of at least ninety days (90) days ("**Major Decision Deadlock**"), a Member shall have the right to exercise the buy/sell rights in accordance with the provisions of Section 8.03.

**Section 6.04 Other Business Activities of the Members.** Any Member may engage in or possess an interest in other business ventures of any nature or description, independently or with others, whether presently existing or hereafter created, including those in competition with the operations of the Company, and neither the Company nor any other Member shall have any rights in or to such independent ventures or the income or profits derived therefrom as a result of being a Member in the Company.

**Section 6.05 Removal of Managing Member or Manager.**

(a) The Operating Member may resign as the Operating Member at any time upon written notice to the Company, without prejudice to the rights, if any, of the Company under any contract to which the Operating Member is a party. Such resignation shall not affect the Operating Member's rights as member. Upon the resignation of the Operating Member, the Members shall elect a replacement manager.

(b) The Operating Member may be removed and replaced only upon a final adjudication by a court of competent jurisdiction that the Operating Member has committed a material breach of its obligations as the Operating Member under this Agreement or has engaged in any act of willful misconduct or fraud.

(c) The Operating Member shall not be liable to the Company or any Member for any loss or damage arising from any act or omission performed in good faith and in a manner reasonably believed to be within the scope of authority granted herein.

## ARTICLE VII
## ACCOUNTING; REPORTING; TAX MATTERS

**Section 7.01 Fiscal Year; Books and Records; Reporting.**

(a) **Fiscal Year.** The fiscal year of the Company shall be the Fiscal Year.

(b) **Books and Records.** The Operating Member shall maintain or cause to be maintained at all times true and correct books, records, reports, and accounts in which shall be entered fully and accurately all transactions of the Company. The books and records of the Company shall be kept by the Operating Member in accordance with

generally accepted accounting principles, consistently applied, unless otherwise required under the Code or unless otherwise directed by Approval of the Members. The accountants for the Company shall be selected by Approval of the Members.

**Section 7.02 Bank Accounts.** The Operating Member shall open and thereafter maintain one or more separate bank accounts in the name of the Company, as necessary, with a federally insured reputable bank or other financial institution in which there shall be deposited funds of the Company. No other funds shall be deposited in said accounts. The funds in said accounts shall be used solely for the business of the Company, and all withdrawals therefrom are to be made only by the Operating Member or such other Persons as the Operating Member may from time to time designate.

**Section 7.03 Tax Information.** The Operating Member shall cause to be prepared and shall timely file all Company tax returns and shall furnish copies thereof to the Members for their review prior to the filing thereof. The Company shall retain a certified public accountant to prepare such tax returns and filings. If requested by a Member, the Company shall make an election, under Section 754 of the Code to adjust the basis of Company property as provided in Sections 734 and 743 of the Code, provided that no material adverse income tax consequence shall result to the Company or the other Members. As soon as reasonably possible after the end of each Fiscal Year, the Operating Member will cause to be delivered to each Person who was a Member at any time during such Fiscal Year, IRS Schedule K-1 to Form 1065 and such other information with respect to the Company as may be necessary for the preparation of such Person's federal, state, and local income tax returns for such Fiscal Year.

## ARTICLE VIII
## TRANSFERS

**Section 8.01 Transfers of Membership Interest.**

(a) **Unauthorized Transfer Void**. The Percentage Interest of a Member may be assigned only as permitted by the provisions of this Section 8 and, except as so permitted, no Member shall assign, sell, dispose of, pledge, give or otherwise transfer (hereinafter referred to collectively as “assign”) such Member’s interest or any part thereof or any interest therein or rights thereof, whether voluntarily, by operation of law, at judicial sale or otherwise, to any Person. Any attempted assignment prohibited by the provisions of this Section 8 shall be null and void and of no force or effect.

(b) **General Restrictions.**

(i) Except as provided in this Article VIII, no Member shall: (A) sell, assign, transfer, mortgage, charge, or otherwise encumber or contract to sell, assign, transfer, mortgage, charge, or otherwise encumber any part or all of its Interest; or (B) permit or suffer any Third Party to sell, assign, transfer, pledge, mortgage, charge, or otherwise encumber, directly or indirectly and whether voluntarily or by operation of law, any legal or beneficial interest in such Member (any such sale, assignment, mortgage, or encumbrance described in clause (A) or (B) collectively referred to as a "**Transfer**"), without the Approval of the other

Member, which Approval may be granted or withheld in the sole discretion of the other Member. Any attempt to effect a Transfer in contravention of the requirements set forth in this Article VIII shall be void and, in addition to other rights and remedies at law and in equity, the other Member shall be entitled to injunctive relief enjoining the prohibited action. The Members expressly acknowledge that damages at law would be an inadequate remedy for a breach or threatened breach of the provisions concerning transfer set forth in this Agreement. The giving of Approval by a Member required under this Article VIII in any one or more instances shall not limit or waive the need for such Approval in any other or subsequent instances.

(ii) No Member shall have the right to effect any Transfer of its Interest if the Transfer: (A) in the opinion of counsel to the Company, may constitute a violation of any state or federal securities laws or other applicable laws, rules, or regulations; (B) affects the Company's existence or qualification as a company under the Wyoming Act or changes or terminates the Company or its status for federal income tax purposes; or (C) is for less than 100% of the Member's Interests.

(c) **Permitted Transfers.** Without any requirement for obtaining Approval, each Member shall have the right to Transfer its Interest in the Company solely if such Transfer is to an Affiliate (together with a Transfer with Approval, a "**Permitted Transfer**"). In addition, Transfers of direct or indirect legal or beneficial interests in Investor Member are considered Permitted Transfers and shall not require Approval.

(d) **Conditions to Transfer.** Transfer of a Member's Interest is conditioned upon the following:

(i) Written notice (including the name and address of the proposed purchaser, transferee, or assignee and the date of such transfer) has been provided to the non-assigning Member.

(ii) The assignee or transferee has:

(A) Paid all Company expenses incurred in connection with its substitution;

(B) Submitted a duly executed instrument of assignment and assumption, in a form reasonably satisfactory to the non-assigning Member (if such Member's Approval is required), specifying the Interest assigned to it and setting forth the assigning Member's intention that the assignee succeed to such portion of the assigning Member's Interest and acknowledging that the assignor or transferor remains liable for its obligations; and

(C) Executed a copy of this Agreement or an amendment to this Agreement

## ARTICLE IX
## INDEMNIFICATION; EXCULPATION

**Section 9.01 Exculpation.** Except as specifically set forth elsewhere in this Agreement to the contrary, or as otherwise required by any non-waivable provision of applicable law, no Member nor any of its successors, assigns, transferees, or any of their respective shareholders, partners, managers, members, officers, trustees, directors, employees, Affiliates, agents, or representatives (each of whom is an "**Indemnified Party**") shall be liable, responsible, or accountable in damages or otherwise to the other Members or the Company for any act performed by such Indemnified Party within the scope of the authority conferred upon it by this Agreement, or for any failure or refusal by such Indemnified Party to perform any act, unless such act or failure or refusal to act constitutes fraud, gross negligence, or willful misconduct or knowing violation of law in the performance of the Indemnified Party's obligations to the Company or the Members.

**Section 9.02 Indemnification by the Company.** To the fullest extent permitted by the Wyoming Act or other applicable law, the Company shall, as a Company expense, indemnify, defend, and hold harmless each Indemnified Party from and against any direct claim, action, suit, or proceeding brought or threatened against such Indemnified Party and from and against any and all liabilities, obligations, losses, damages, penalties, actions, judgments, suits, proceedings, costs, expenses, and disbursements of any kind or nature whatsoever (including all reasonable costs and expenses of attorneys, defense, appeal, and settlement of any and all suits, actions, or proceedings instituted or threatened against such Indemnified Party or the Company and all costs of investigation in connection therewith incurred by such Indemnified Party by reason of any act performed, or failure or refusal to act, by him or it for and on behalf of the Company provided, however, that in each case the act or failure or refusal to act was within the scope of this Agreement and did not constitute: (a) a material breach by the Indemnified Party of its covenants, representations, warranties, or agreements under this Agreement; or (b) bad faith, willful misconduct, gross negligence, fraud, or knowing violation of laws. The termination of any action, suit, or proceeding by judgment, order, settlement, conviction, or upon a plea of nolo contendere or its equivalent, shall not, of itself, create a presumption that the Person did not act in good faith and in a manner which it reasonably believed to be in or not opposed to the best interests of the Company, and, with respect to any criminal action or proceeding, had reasonable cause to believe that its conduct was unlawful. Expenses (including reasonable out of pocket attorneys' fees and direct expenses) incurred by an Indemnified Party in defending any civil, criminal, administrative, or investigative action, suit or proceeding may be paid by the Company in advance of the final disposition of such action, suit or proceeding upon receipt of an undertaking by or on behalf of such Indemnified Party to repay such amount if it shall ultimately be determined that he or it is not entitled to be indemnified by the Company as authorized in this Section 9.02.

**Section 9.03 Indemnification by the Operating Member.** The Operating Member shall, to the fullest extent permitted by applicable law, indemnify, defend, and hold harmless the Company, its Members, Affiliates, employees, officers, and directors from and against any and

all claims, demands, causes of action, fines, penalties, costs and expenses (including attorneys' fees), losses, or damages of any kind or character, including the cost of defense thereof and all costs of investigation in connection therewith, but excluding lost profits, suffered by any of the foregoing arising out of a material breach by the Operating Member of its covenants, representations, warranties, or agreements under this Agreement or the bad faith, willful misconduct, gross negligence, fraud, or knowing violation of laws.

**Section 9.04 Waiver of Fiduciary Duty.**

(a) This Agreement is not intended to, and does not, create or impose any fiduciary duty on the Members. Furthermore, each of the Members and the Company hereby waives any and all fiduciary duties that, absent such waiver, may be implied by Applicable Law, and in doing so, acknowledges and agrees that the duties and obligation of the Members to each other and to the Company are only as expressly set forth in this Agreement. The provisions of this Agreement, to the extent that they restrict the duties and liabilities of the Members otherwise existing at law or in equity, are agreed by the Members to replace such other duties and liabilities of such Person.

(b) Whenever in this Agreement a Member is permitted or required to make a decision (including a decision that is in such Person's "discretion" or under a grant of similar authority or latitude), such Person shall be entitled to consider only such interests and factors as such Person desires, including its own interests, and shall have no duty or obligation to give any consideration to any interest of or factors affecting the Company, or any other Person. Whenever in this Agreement a Member is permitted or required to make a decision in such Person's "good faith," such Person shall act under such express standard and shall not be subject to any other or different standard imposed by this Agreement or any other Applicable Law.

**Section 9.05 Survival.** Notwithstanding anything to the contrary in this Agreement, the provisions of this Article IX shall survive the dissolution, liquidation, winding up, and termination of the Company.

## ARTICLE X
## DISSOLUTION AND LIQUIDATION

**Section 10.01 Events of Dissolution.**

(a) The term "**Event of Dissolution**" as used hereunder shall mean any one or more of the following:

(i) the sale or disposition of all the Company Assets and the receipt, in cash, of all consideration therefor;

(ii) the written determination of the Members to dissolve the Company; and

(iii) the occurrence of any event that, as a matter of law, requires that the Company be dissolved.

(b) The provisions of this Agreement to the contrary notwithstanding, no event of insolvency, bankruptcy, or otherwise as set forth in the Wyoming Act with respect to a Member shall cause such Member to cease to be a Member of the Company, and such Member shall remain a Member unless all the Member's Interest in the Company is Transferred in accordance with this Agreement and such Transferee is admitted as a Member as provided in this Agreement.

(c) Except as otherwise provided in Sections 10.02(a) and 10.01(a), neither the sale, assignment, conveyance, nor transfer of all or any part of the Interest of any Member shall result in the termination of the Company as a corporation under the Wyoming Act, even though such sale, assignment, conveyance, or transfer may result in the withdrawal of a Member and/or the admission of a new Member to the Company.

(d) On completion of the distribution of the Company Assets, the Operating Member (or such other person as the Wyoming Act may require or permit) shall file a Certificate of Cancellation with the Secretary of State of Wyoming, cancel any other filings made to qualify to conduct business in any other states, and take such other actions as may be necessary to terminate the existence of the Company.

**Section 10.02 Liquidation and Distribution Procedure.** In the event of the liquidation and distribution as a result of an Event of Dissolution pursuant to Section 10.01 hereof, all the Company Assets shall be liquidated. The Operating Member shall serve as liquidator for the Company (or the Members may appoint one or more other Persons to serve as liquidator). Upon such distribution and winding up, the parties hereto shall be relieved of all obligations hereunder except for: (i) obligations, duties, or rights hereunder that expressly survive termination of this Agreement or dissolution of the Company; and (ii) obligations, duties, or rights which have not been determined or ascertained as of the date of such termination of this Agreement and dissolution of the Company. During the period of such winding up, the business and affairs of the Company shall be conducted so as to maintain and preserve the Company Assets in a manner consistent with the winding up of the affairs thereof. The costs of liquidation of each entity shall be an expense of such entity.

## ARTICLE XI
## MISCELLANEOUS

**Section 11.01 Notices.** Unless specifically stated otherwise in this Agreement, all notices, waivers, and demands required under this Agreement shall be in writing and delivered to all other Parties at the addresses below, by one of the following methods:

(a) Hand delivery, whereby delivery is deemed to have occurred at the time of delivery;

(b) A nationally or regionally recognized overnight courier company, whereby delivery is deemed to have occurred the Business Day following deposit with the courier;

(c) Registered United States Mail, signature required and postage-prepaid, whereby delivery is deemed to have occurred on the third Business Day following deposit with the United States Postal Service; or

(d) Electronic transmission (facsimile or e-mail) provided that the transmission is completed no later than 4:00 p.m. EST on a Business Day and the original also is sent via overnight courier or United States Mail, whereby delivery is deemed to have occurred at the end of the Business Day on which electronic transmission is completed.

To Operating Member: Name: Ovalia Capital Bitcoin LLC

Address: 30 N Gould Street Ste N
Sheridan WY 82801

with a copy to: Name: BH BWELL I LLC

Address: 30 N Gould Street Ste N
Sheridan WY 82801

Any Party shall change its address for purposes of this Section 11.01 by giving written notice as provided in this Section 11.01. All notices and demands delivered by a party's attorney on a Party's behalf shall be deemed to have been delivered by said Party. Notices shall be valid only if served in the manner provided in this Section 11.01.

**Section 11.02 Complete Agreement.**

(a) **Counterparts; Amendments.** This Agreement may be executed in counterparts, and when executed and delivered by all Parties in person, by facsimile or email pdf, shall become one (1) integrated agreement enforceable on its terms. This Agreement supersedes all prior agreements between the Parties with respect to the subject hereof and all discussions, understandings, offers, and negotiations with respect thereto, whether oral or written. This Agreement shall not be amended or modified, except in a writing signed by each Party hereto. If amended or modified as permitted by this Section 11.02, the term "Agreement" shall thereafter be read as including all said amendments and modifications. All exhibits that are referenced in this Agreement or attached to it are incorporated herein and made a part hereof as if fully set forth in the body of the document.

(b) **Partial Invalidity.** Any term or provision of this Agreement which is invalid or unenforceable in any jurisdiction will, as to that jurisdiction, be ineffective to the extent of such invalidity or unenforceability without rendering invalid or unenforceable the remaining terms and provisions of this Agreement or affecting the validity or enforceability of any of the terms or provisions of this Agreement in any other jurisdiction. If any provision of this Agreement is so broad as to be unenforceable, the provision will be interpreted to be only so broad as is enforceable.

(c) **No Waivers.** Any waiver of any provision or of any breach of this Agreement shall be in writing and signed by the Party waiving said provision or breach. No waiver of any breach of any agreement or provision herein contained shall be deemed a waiver of any preceding or succeeding breach thereof or of any other agreement or provision herein contained. No extension of time for performance of any obligations or acts shall be deemed an extension of the time for performance of any other obligations or acts.

(d) **Digital Asset Risk Disclosure.** Members acknowledge that investments in Bitcoin, digital assets, digital asset derivatives, and related instruments involve substantial risk, including extreme price volatility, regulatory uncertainty, exchange or custodian insolvency, cybersecurity breaches, loss of private keys, blockchain protocol changes or forks, technological failure, trading halts, liquidity disruptions, and counterparty default. The Operating Member shall not be liable for losses arising from such risks, including losses resulting from the failure, insolvency, hacking, or misconduct of exchanges, custodians, brokers, or counterparties, provided the Operating Member acted in good faith and without gross negligence or willful misconduct.

(e) **Business Activities**. The Operating Member and its affiliates may engage in other business activities, including investment management, trading, advisory services, or the operation of other funds or investment vehicles, whether or not such activities compete with the Company. The Operating Member shall have no obligation to present any investment opportunity to the Company and may allocate investment opportunities among the Company and other accounts or entities in its sole discretion. The Operating Member and its affiliates may receive compensation, fees, or other economic benefits from transactions involving the Company or underlying investment vehicles, and such arrangements shall not constitute a breach of this Agreement.

(f) **Tax Payment**. The Operating Member may, but shall not be obligated to, cause the Company to make distributions to Members to assist with tax liabilities arising from allocations of taxable income. Any such tax distributions shall be made at such times and in such amounts as determined by the Operating Member in its sole discretion, subject to available liquidity and the needs of the Company. No Member shall have the right to demand or compel tax distributions, and the Operating Member may withhold or suspend such distributions if it determines that doing so is in the best interests of the Company.

(g) **Fund of Funds**. The Company may invest directly or indirectly through pooled investment vehicles, feeder funds, master funds, special purpose vehicles, affiliated entities, or third-party investment funds. The Company may incur management fees, performance fees, carried interest, incentive allocations, and other expenses at such underlying investment levels. The Members acknowledge that layered fees may apply and waive any claim arising solely from the payment of such underlying fees or expenses.

(h) **Modify and Expand**. The Operating Member shall have the authority to modify, suspend, expand, or alter the Company's investment strategy at any time without Member consent. The Operating Member may suspend or delay the calculation of net asset value or redemptions during periods of market disruption, exchange outages, liquidity constraints, regulatory uncertainty, or other extraordinary events. Members acknowledge that asset valuations, particularly for digital assets and derivatives, may differ materially from realized liquidation values and waive any claims based solely on valuation differences made in good faith. The Company may utilize leverage and derivative instruments, which may magnify gains and losses and may result in losses exceeding capital allocated to particular positions. Performance allocations properly crystallized shall not be subject to reversal due to subsequent declines in asset value. The Company may incur all ordinary and extraordinary expenses necessary or advisable for its operation, including professional fees, compliance costs, travel, due diligence, and insurance, and such expenses shall be borne by the Company.

(i) **Extraordinary Events**. The Operating Member shall not be liable for delays, suspensions, or inability to perform obligations arising from events beyond its reasonable control, including but not limited to exchange failures, custodian insolvency, governmental actions, blockchain protocol disruptions, cyberattacks, liquidity crises, or other force majeure events.

(j) **Leverage.** Members acknowledge that the use of leverage may result in losses exceeding the amount initially allocated to specific positions and may result in rapid and substantial declines in net asset value.

**Section 11.03 Third-Party Beneficiary; Parties; Successors and Assigns.**

(a) **Third Party Beneficiary.** This Agreement is an agreement solely for the benefit of the Members (and their permitted successors and/or assigns). No other person,

party or entity shall have any rights hereunder nor shall any other person, party, or entity be entitled to rely upon the terms, covenants, and provisions contained herein. The provisions of this Section 11.03 shall survive the termination of this Agreement or dissolution of the Company.

(b) **Parties.** The terms "**Party**" and "**Parties**" include Operating Member, Investor Member, their respective constituent entities, and their respective successors, assigns, and legal representatives. In the event either Operating Member or Investor Member is an individual, a "Party" or "Parties" includes that individual's heirs.

(c) **Successors and Assigns.** This Agreement and all its covenants, terms, and provisions shall be binding on and inure to the benefit of each Party and its successors and assigns.

**Section 11.04 Further Assurances.** Each Member agrees to do such things, perform such acts and make, execute, acknowledge, and deliver such documents as may be reasonably necessary and customary to carry out the intent and purposes of this Agreement, so long as any of the foregoing do not materially increase any Member's obligations hereunder or materially decrease any Member's rights hereunder.

**Section 11.05 Days; Performance on a Saturday, Sunday, or Holiday.** Whenever the term "day" is used in this Agreement, it shall refer to a calendar day unless otherwise specified. Should this Agreement require an act to be performed or a notice to be given on a day other than a Business Day, the act shall be performed, or notice given on the following Business Day.

**Section 11.06 Governing Law.** This Agreement shall be governed and construed in accordance with the laws of the State of Wyoming without giving effect to any choice or conflict of law provision or rule (whether of the State of Wyoming or any other jurisdiction) that would cause the application of laws of any jurisdiction other than those of the State of Wyoming.

**Section 11.07 Submission to Jurisdiction.** The parties hereby agree that any suit, action or proceeding seeking to enforce any provision of, or based on any matter arising out of or in connection with, this Agreement or the transactions contemplated hereby, whether in contract, tort, or otherwise, shall be brought in the United States District Court for the District of Palm Beach, or in in any state court sitting within the County of United States of America, State of Florida, so long as one of such courts shall have subject-matter jurisdiction over such suit, action or proceeding, and that any cause of action arising out of this Agreement shall be deemed to have arisen from a transaction of business in the State of Florida. Each of the parties hereby irrevocably consents to the jurisdiction of such courts (and of the appropriate appellate courts therefrom) in any such suit, action or proceeding and irrevocably waives, to the fullest extent permitted by law, any objection that it may now or hereafter have to the laying of the venue of any such suit, action, or proceeding in any such court or that any such suit, action, or proceeding that is brought in any such court has been brought in an inconvenient forum. Service of process, summons, notice, or other document by registered mail to the address set forth in Section 11.01 shall be effective service of process for any suit, action, or other proceeding brought in any such court.

**Section 11.08 Waiver of Jury Trial.** EACH MEMBER HEREBY EXPRESSLY AND UNCONDITIONALLY WAIVES, IN CONNECTION WITH ANY SUIT, ACTION, OR PROCEEDING BROUGHT BY THE OTHER PARTY HERETO UNDER THIS AGREEMENT OR IN CONNECTION WITH ANY TRANSACTION CONTEMPLATED HEREBY, ANY AND EVERY RIGHT EACH MEMBER MAY HAVE TO A TRIAL BY JURY.

[SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of the date set forth above.

**INVESTOR MEMBER:**

Signature: _____

Date: _____

Name: _____

Title: Investor Member

**OPERATING MEMBER:**

Signature: Avezbadalov

Date: 02/10/2026

Name: Azriel Avezbadalov

Title: Debt and Equity Manager

## EXHIBIT A

## Tax Allocations and Elections

*(Note: Capitalized terms not otherwise defined in this Exhibit A shall have the meaning set forth in this Agreement.)*

1.1 Allocations. Net Income, Gain and Net Loss of the Company shall be allocated to the Members as provided below:

(a) In General. Except as otherwise provided in this Section 1.1, Net Income, Gain and Net Loss of the Company for any relevant period shall be allocated to the Members to cause, to the extent possible, their "Modified Capital Account" balances to equal their respective "Target Balances." The term "Modified Capital Account" shall mean, for each Member, such Member's capital account balance increased by such Member's share of "partnership minimum gain" and of "partner minimum gain" (as determined pursuant to Regulations Sections 1.704-2(g) and 1.704-2(i)(5), respectively). The term "Target Balance" shall mean, for each Member at any point in time, either (i) a positive amount equal to the net amount, if any, the Member would be entitled to receive or (ii) a negative amount equal to the net amount the Member would be required to pay or contribute to the Company or to any third party, assuming, in each case, that (A) the Company sold all of its assets for an aggregate purchase price equal to their aggregate carrying value (assuming for this purpose only that the carrying value of any asset that secures a liability that is treated as "nonrecourse" for purposes of Regulations Section 1.1001-2 is no less than the amount of such liability that is allocated to such asset in accordance with Regulations Section 1.704-2(d)(2)); (B) all liabilities of the Company were paid in accordance with their terms from the amounts specified in clause (A) of this sentence; (C) any Member that was obligated to contribute any amount to the Company pursuant to this Agreement or otherwise (including the amount a Member would be obligated to pay to any third party pursuant to the terms of any liability or pursuant to any guaranty, indemnity or similar ancillary agreement or arrangement entered into in connection with any liability of the Company) contributed such amount to the Company; (D) all liabilities of the Company that were not completely repaid pursuant to clause (B) of this sentence were paid in accordance with their terms from the amounts specified in clause (C) of this sentence; and (E) the balance, if any, of any amounts held by the Company was distributed in accordance with Section 5.2 of this Agreement.

(b) Income Tax Allocations. For purposes of Sections 702 and 704 of the Code, or the corresponding sections of any future federal tax law, or any similar tax law of any state or other jurisdiction, the Company's profits, gains and losses for federal income tax purposes, and each item of income, gain, loss or deduction entering into the computation thereof, shall be allocated among the Members in the same proportions as the corresponding "book" items are allocated pursuant to this Section 1.1, except as otherwise provided in Section 1.1(e) below

(c) Minimum Gain Chargeback. Notwithstanding any other provision in this Agreement, if there is a net decrease in Company minimum gain (as defined in Regulations Section 1.704-2(b)(2)), during any taxable year, items of Company income and gain shall be allocated in accordance with the provisions of Regulations Section 1.704-2(f). This Section

1.1(a) is intended to comply with Regulations Section 1.704-2(e)(3). Any special allocation of items of income or gain pursuant to this Section 1.1(a) shall be taken into account in computing subsequent allocations of Net Income or Gain pursuant to this Exhibit A, so that the net amount of any item so allocated and the Net Income, Gain and Net Loss and other items allocated to each Member pursuant to this Exhibit A, shall, to the extent possible, be equal to the net amount that would have been allocated pursuant to the provisions of this Exhibit A if such decrease in minimum gain had not occurred.

(d) Qualified Income Offset. Any Member who unexpectedly receives an adjustment, allocation or distribution described in Regulations Section 1.704-1(b)(2)(ii)(d)(4), (5) or (6), so as to cause or increase a deficit balance in such Member's capital account (in excess of any limited dollar amount of such deficit balance that such Member is obligated or deemed obligated to restore within the meaning of Regulations Section 1.704-1(b)(2)(ii)(c) and 1.704-2(g), shall be allocated items of gross income and gain in an amount and manner sufficient to eliminate such deficit balance as quickly as possible. Any such allocation of items of income or gain pursuant to this Section 1.1(d) shall be taken into account in computing subsequent allocations of Net Income or Gain pursuant to this Exhibit A, so that the net amount of any item so allocated and the Net Income, Gain, Loss and Net Loss and all other items allocated to each Member pursuant to this Exhibit A shall, to the extent possible, be equal to the net amount that would have been allocated pursuant to the provisions of this Exhibit A if such unexpected adjustment, allocation or distribution had not occurred.

(e) Allocations Regarding Contributed Property. Each item of taxable income, gain, loss or deduction attributable to any property contributed to the Company ("Contributed Property") shall be allocated first to the Member that contributed the Contributed Property to the Company (the "Property Member") in the amount required to take into account the Property Member's share of the difference between the carrying value of the Contributed Property and its Adjusted Basis at the time of contribution. In making allocations pursuant to the preceding sentence, the Managing Member is authorized to apply any method or convention required or permitted by Section 704(c) of the Code and the Regulations thereunder. The Company shall apply similar principles with respect to property which has an adjusted tax basis different from its carrying value due to the operation of Regulation Section 1.704-1(b)(2)(iv)(f).

(f) Interpretation of Allocations. The Members intend (i) that the allocation provisions contained in this Exhibit A and elsewhere in this Agreement be interpreted so that the distributions pursuant Section 5.2.4 of this Agreement are in accordance with the final capital account balances of the Members, and (ii) that the allocation provisions contained in this Exhibit A and elsewhere in this Agreement be applied and amended by the Operating Member, if and to the extent necessary to produce such result even if any such application or amendment requires (A) first, special allocations of gross income and/or gross deductions for the current fiscal year (or, if necessary, any other period), and (B) second, if necessary, the amendment of prior tax returns for the Company. This Section 1.1(f) shall control notwithstanding any reallocation of income, loss or items thereof by the Internal Revenue Service or any other taxing authority.

1.2 Accounting With Reference to Issuance or Transfer of Company Interest. Upon the admission of any additional Member of the Company or upon the transfer of any Company interest (as permitted herein) to an Assignee or to any Person being admitted as a Substituted

Member, the Net Income, Gain, and Net Loss, and each item thereof, for the year in which any such admission or transfer occurs, attributable to the new interest or the interest transferred, shall be allocated to the newly admitted Member or between the transferor and transferee (Assignee or Substituted Member) as the case may be, as follows: all Net Income, Gain, and Net Loss, and each item thereof, which are to be allocated for the fiscal year in which the admission or transfer occurs shall be prorated as of the date upon which the admission or transfer is recognized by the Operating Member as having occurred, so that for the purpose of making such proration, the items for such year shall be deemed to have been earned or incurred in equal daily increments, without regard to the date such items are actually earned or incurred during the periods before and after the date upon which the admission or transfer occurs.

1.3 Fiscal Year. The fiscal year ("Fiscal Year") of the Company shall be the calendar year.

1.4 Basis Adjustment. In the case of a distribution of Company property or a transfer of a Company interest, the Operating Member may cause the Company to file an election under Section 754 of the Code to adjust the basis of the Company's property. As a result of this election, the Operating Member shall have the right to require, as a condition to the granting of consent to any transfer, the reimbursement of expenditures made by the Company for any legal and accounting fees incurred to make any such basis adjustment. The Operating Member shall have the right, in its sole and absolute discretion, to decline to make such an election; and further, the making or failure to make any election under Section 754 of the Code in connection with any particular transfer of an interest in the Company shall not affect the right of the Operating Member to make, or refuse to make, such an election with respect to any subsequent transfer of an interest in the Company.

1.5 Elections. The Company shall have the right, in the sole and absolute discretion of the Operating Member, to make or refuse to make any other elections or determinations required or permitted for federal or state income tax or other tax purposes. The Operating Member may rely upon the advice of the Company's accountants or tax attorneys with respect to the making of any such election.

1.6 Partnership Representative. With respect to each taxable year of the Company: (i) except as otherwise provided herein, the Bipartisan Budget Act of 2015, P.L. 114-74, as amended, and the Treasury Regulations promulgated thereunder (collectively, the "BBA") shall apply to the Company; (ii) this Section 1.6 shall control the Company's handling of matters with the Internal Revenue Service; and (iii) such provisions shall supersede any conflicting provisions set forth in this Agreement.

(a) The BBA Opt Out Regime. For any year in which the Company is eligible to make the election in Section 6221(b) to opt out of Subchapter C of Chapter 63 of the Code (the "BBA Opt Out Regime"), the Operating Member, in its discretion, may cause the Company to timely make such election in accordance with the provisions set forth in Section 6221 of the Code as amended by the BBA. In such event, the Members hereby acknowledge and agree that any examination by the Internal Revenue Service shall be conducted at the Member level rather than the Company level, in accordance with Section 6231, *et. seq*., of the Code (before amendment by the BBA).

(b) Appointment of the Partnership Representative; Authority of the Partnership Representative. Effective for all Fiscal Years commencing on or after January 1, 2018, AIGP, or such other Person as appointed by AIGP is hereby designated as the initial "partnership representative" of the Company pursuant to Section 6223(a) of the Code as amended by the BBA (the "Partnership Representative"). AIGP, may, from time to time, designate any other Person as the Partnership Representative in lieu of the original Partnership Representative in accordance with Section 6223 of the Code, and any Person so designated shall cease to be the Partnership Representative whenever the Operating Member designates any other Person to be the successor Partnership Representative in accordance with this Section 1.6(b). The Partnership Representative, in its sole discretion, shall have the right to make on behalf of the Company any and all elections and take any and all actions that are available to be made or taken by the Partnership Representative or the Company under the BBA (including an election under Section 6226 of the Code as amended by the BBA), and the Members shall take such actions requested by the Partnership Representative consistent with any such elections made and actions requested by the Partnership Representative, including filing amended tax returns and paying any tax due in accordance with Section 6225(c)(2) of the Code as amended by the BBA.

(c) The BBA Alternative Regime. If the Company receives a notice of final partnership adjustment with respect to any Fiscal Year (each, a "Reviewed Year"), then, no later than forty-five (45) days after the receipt of such notice, the Partnership Representative may: (i) elect the application of Code Section 6226 (the "BBA Alternative Regime"), as amended by the BBA, to such final partnership adjustment, and (ii) furnish to each Member who was a Member during such Reviewed Year (each, a "Reviewed Year Member") with the statement required by Code Section 6226(a), as amended by the BBA. In such event, each Reviewed Year Member hereby agrees to take any adjustment to income, gain, loss, deduction, or credit (as determined in the notice of final partnership adjustment) into account to the full extent provided for in Section 6226(b) of the Code (as amended by the BBA) or the applicable corresponding provisions of state, local or foreign law.

(d) The BBA Default Regime and the Company's Payment of any Imputed Underpayments. If, for any Fiscal Year in which the BBA Opt Out Regime does not apply and for any Fiscal Year in which the Partnership Representative does not elect to have the BBA Alternative Regime apply with respect to a final partnership adjustment pursuant to Section 1.6(c) above, the "default regime" under Code Section 6221(a) (the "BBA Default Regime") shall apply and the Partnership Representative shall, on behalf of the Company, make any and all payments to the Internal Revenue Service in connection with any imputed underpayment liability. Further, the Partnership Representative shall use commercially reasonable efforts to: (i) make any modifications available under Code Section 6225(c)(3), (4) and (5), as amended by the BBA, and (ii) if requested by a Member, provide to such Member information allowing such Member to file an amended federal income tax return, as described in Code Section 6225(c)(2) as amended by the BBA, to the extent that such amended return and payment of any related federal income taxes would reduce any taxes payable by the Company with respect to the imputed underpayment amount (after taking into account any modifications described in clause (i)).

(e) Members Reimbursement Obligations to the Company. If the Company pays any imputed adjustment amount under Code Section 6225 as amended by the BBA, the Operating Member shall seek payment from the Members (including any former Member) to whom such

liability relates, and each such Member (including any former Member) hereby agrees to pay such amount to the Company, and such amount shall not be treated as a Capital Contribution. Any amount not paid under the preceding sentence by a Member (or former Member) at the time requested by the Operating Member shall accrue interest until paid at the prime rate of interest as published in the eastern edition in the Wall Street Journal as of the day that such amount becomes due to the Company pursuant to this paragraph, and such Member (or former Member) shall also be liable to the Company for any damages resulting from a delay in making such payment beyond the date such payment is requested by the Operating Member. Without reduction in any Member's (or former Member's) obligation under the preceding sentences of this Section 1.6(e), any imputed adjustment amount paid by the Company that is attributable to a Member (or former Member), and that is not paid by such Member shall be treated as a distribution to such Member (or former Member).

(f) Member Notice and Participation. No later than ten (10) business days after it has knowledge of any tax audit or tax proceeding, the Partnership Representative shall notify the Members of the existence of any such tax audit or tax examination of the Company. Each Member shall have the right to have a tax advisor of its own choosing participate in, but not direct, the prosecution or defense of such tax audit or tax examination at such Member's sole expense. The Partnership Representative shall make commercially reasonable efforts to facilitate such tax advisor's participation.

(g) Indemnity from Former Members. To the extent that a portion of the tax liabilities imposed under Code Section 6225 as amended by the BBA relates to a former Member of the Company, the Operating Member may require a former Member to indemnify the Company for its allocable portion of such tax. Each Member acknowledges that, notwithstanding the transfer or redemption of all or any portion of its Company Interest, such Member may remain liable for tax liabilities with respect to its allocable share of income and gain of the Company for the Company's taxable years (or portions thereof) prior to such transfer or redemption.

(h) Survival of Obligations. The obligations of each Member or former Member under this Section 1.6 shall survive the transfer or redemption by such Member of its Company Interest and the termination of this Agreement or the dissolution of the Company, and shall remain binding on the Members and former Members for such period of time as necessary to resolve all matters regarding the federal income taxation of the Company.

(i) Miscellaneous. Each Member agrees in respect of any year in which that Member had a Capital Account in the Company that, except to the extent the Partnership Representative expressly agrees otherwise with him or her or it, he or she or it shall not: (i) treat, on his or her or its individual income tax returns, any item of income, gain, loss, deduction or credit of the Company in a manner inconsistent with the treatment of that item by the Company, as reflected on the Schedule K-1 or other information statement the Company provides him or her or it, or (ii) file any claim for refund relating to any such item based on, or that would result in, any such inconsistent treatment. Any reasonable costs incurred by the Partnership Representative for retaining accountants and/or lawyers on behalf of the Company in connection with any Internal Revenue Service audit of the Company shall be expenses of the Company.